

August 31, 2026
Dept. 9
Probate Tentative Rulings

3.	26PR0183	IN RE THE MATTER OF: THE JAMES A. AND NORMA M. DUNN FAMILY TRUST OF 2007, DATED JANUARY 17, 2007
INSTRUCTION HEARING		

On June 23, 2026, Petitioners, Gordon C. Dunn and Larry W. Janes (collectively "Petitioners"), filed a Petition by Surviving Beneficiary Gordon C. Dunn, Joined by Petitioner Larry W. Janes to Determine Claim to and Quieting Title to Real Property; For an Order Confirming Transfer of Real Property to Petitioner Larry W. Janes, Trustee; and For an Order Confirming Title to Trust Assets.

On or around August 13, 2004, James A. Dunn ("James") and Norma M. Dunn ("Norma") sold certain Unimproved Real Property and a contiguous parcel of Improved Real Property to Petitioner Janes and his wife, Cheryl, who is now deceased. A Grant Deed was recorded for the contiguous Improved Real Property, which vests title from James and Norma, husband and wife, as joint tenants, to Larry W. Janes and Cheryl A. Janes, husband and wife as joint tenants.

A Deed of Trust was executed as part of the sale of the Unimproved Real Property, evidencing a debt obligation of \$40,000 owed from Petitioner Janes and Cheryl to James and Norma, which was recorded; however, the Unimproved Real Property was not properly conveyed to Petitioner Janes and Cheryl at the time the Deed of Trust was signed and recorded.

On January 17, 2007, James and Norma Dunn established The James A. and Norma M. Dunn Family Trust of 2007. Article 3, Section A provides:

We have transferred and delivered to our Trustee the property on Schedule A without consideration. Such titles and interests as our Trustee has received or may hereafter acquire in that property and such other property as may hereafter be added to the Trust shall be vested in our Trustee.

Schedule A of the Trust specifically identifies the Unimproved Real Property by common street address and legal description; however, it does not identify the Deed of Trust executed by the Janeses in 2004 and paid in 2019.

Petitioners assert that due to omission or mistake, James and Norma did not execute a conveying instrument to convey title to the Unimproved Real Property from the Dunns to the Janeses, instead holding a Deed of Trust to the property still in their legal name.

An Assignment of Deed of Trust was recorded on April 18, 2007, which assigned the Deed of Trust to James and Norma, as Trustees of the Trust. A second Assignment of Deed of Trust was recorded on August 25, 2014, by Successor Trustee, Patricia A. Lawrence, which assigned the beneficial interest in the Deed of Trust equally to three of James and Norma's children as

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their sole and separate property: Patricia A. Lawrence, Gordon C. Dunn, and Cynthia M. Davis-Bowers. On October 23, 2019, a Full Reconveyance of the Deed of Trust was recorded.

Upon discovery of the title problem to the Unimproved Real Property, the Trustee and Beneficiaries under the Deed of Trust executed a Recission of Full Reconveyance for the Deed of Trust and Full Reconveyance which was recorded on August 6, 2025.

Petitioners assert that James and Norma intended their interest in the property to be vested in the Trust, which is evidenced by Article 3, Section A and Schedule A specifically identifying the Unimproved Real Property as Trust property. Petitioners further contend that the property listed in Schedule A is not subject to administration in James's probate estate but rather is owned by the Trustee of the Trust.

Petitioners request the following:

1. All notices have been given according to law;
2. The Petition is granted;
3. Co-Petitioner Gordon C. Dunn and Successor Trustee Lucky Lawrence shall execute a Deed of Reconveyance for the Deed of Trust dated August 17, 2004, recorded August 29, 2004, as Instrument No. 2004-0066984 affecting Parcel A.
4. Successor Trustee Lucky Lawrence and Gordon C. Dunn shall execute a grant deed from the Dunn Trust to Petitioner Larry W. Janes, Trustee for Parcel A.
5. Larry W. Janes, Successor Trustee, to be confirmed in title to Parcel A by Order of this Court.
6. For costs herein; and
7. For such other orders as the court may deem proper.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

- (a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.

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(b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition.

Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedents intended the property be part of the Trust.

TENTATIVE RULING #3:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.